

24STLC00272 24STLC00272

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC00272 Hearing Date: July 22, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Liberty Mutual Fire Insurance Company's (1) Motion to Compel Responses to Form Interrogatories; Request for Monetary Sanctions, is granted in part and denied in part. Defendant Eduardo Rafael Garcia is to serve verified responses without objections to the Form Interrogatories, Set One, within 20 days' service of this order. Plaintiff's request for sanctions is denied.

Plaintiff Liberty Mutual Fire Insurance Company's Motion to Deem Requests for Admission Admitted; Request for Sanctions, is granted. Defendant Eduardo Rafael Garcia is ordered to pay sanctions of \$285.00 to Plaintiff within 20 days' notice of this ruling.

Analysis:

Plaintiff Liberty Mutual Fire Insurance Company ("Plaintiff") propounded Form Interrogatories, Set One, and Requests for Admission, Set One, on Defendant Eduardo Rafael Garcia ("Defendant") on April 16, 2026. (Motions, Tapper Decl., ¶2 and Exh. A.) Defendant has not served responses to the discovery as of the June 12, 2026 filing of the instant (1) Motion to Compel Responses to Form Interrogatories; Request for Sanctions; and (2) Motion to Deem Requests for Admission Admitted; Request for Sanctions. (Id. at ¶3.)

Based on Defendant's failure to serve initial responses to the discovery, the Motions to compel responses and to deem admissions admitted, are granted. There is no requirement for a prior meet and confer effort before a motion to compel initial responses or deem admissions admitted can be filed.

(Code Civ. Proc., §§ 2030.290, 2033.280.) Furthermore, the Motions can be brought at any time after the responding party fails to provide responses. (Code Civ. Proc., §§ 2030.290, 2033.280.) Therefore, Plaintiff is entitled to an order compelling Defendant to serve verified responses to the interrogatories. (Code Civ. Proc., § 2030.290.) Plaintiff is also entitled to an order deeming the requests for admission admitted. (Code Civ. Proc., § 2033.280.)

On a motion to deem requests for admission admitted, the Court is required to award sanctions under section 2033.280. (Code Civ. Proc., § 2033.280, subd. (c).) While properly noticed, the sanctions sought are excessive for an unopposed motion to deem requests for admission admitted and for which Plaintiff's counsel can appear telephonically. (Motion, Tapper Decl., ¶4.) Therefore, sanctions are granted against Plaintiff in the amount of \$285.00 based on one hour of attorney time billed at \$225.00 per hour, plus the \$60.00 filing fee. (Id. at ¶¶5-6.)

Defendant requests sanctions for the Motion to Compel Responses to Form Interrogatories, Set One, pursuant to Code of Civil Procedure section 2030.290, under which the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code Civ. Proc., § 2030.290, subd. (c), emphasis added.) Defendant did not make or oppose the instant Motion to Compel Responses. Therefore, sanctions are not available under section 2030.290.

Conclusion

Plaintiff Liberty Mutual Fire Insurance Company's (1) Motion to Compel Responses to Form Interrogatories; Request for Monetary Sanctions, is granted in part and denied in part. Defendant Eduardo Rafael Garcia is to serve verified responses without objections to the Form Interrogatories, Set One, within 20 days' service of this order. Plaintiff's request for sanctions is denied.

Plaintiff Liberty Mutual Fire Insurance Company's Motion to Deem Requests for Admission Admitted; Request for Sanctions, is granted. Defendant Eduardo Rafael Garcia is ordered to pay sanctions of \$285.00 to Plaintiff within 20 days' notice of this ruling.

Moving party to give notice.